

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

EFREN CADENA,

A Permanent Certificated Employee,

Moving Party,

and

LOS ANGELES UNIFIED SCHOOL DISTRICT,

Responding Party.

OAH No. 2024120165

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Ji-Lan Zang, Administrative Law Judge, Office of Administrative Hearings (OAH),
State of California, heard this matter by videoconference on January 3, 2025.

Tamra M. Smith, Attorney at Law, represented moving party Efren Cadena
(Employee).

Leslie Chi, Attorney at Law, represented responding party Los Angeles Unified School District (District).

District has suspended Employee without pay pending the outcome of its action to dismiss Employee. The basis for the suspension under Education Code section 44939 is immoral conduct. In his motion (Motion), Employee seeks an order for the immediate reversal of his suspension. District opposes the Motion and has filed an opposition (Opposition).

Counsel for both parties presented oral argument at the motion hearing. The parties did not dispute that the Statement of Charges (SOC), attached as an exhibit to the Motion, is the operative pleading for this proceeding.

Motion for Immediate Reversal of Suspension

A school district may immediately suspend without pay a permanent certificated employee charged with immoral conduct. (Ed. Code, § 44939, subd. (b).) A suspended employee may file a motion for immediate reversal of the suspension with OAH. (Ed. Code, § 44939, subd. (c)(1).) An administrative judge's review of the suspended employee's motion shall be "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (Ed. Code, § 44939, subd. (c)(1).)

Although the administrative law judge must accept well-pleaded facts in the SOC as true, the administrative law judge need not accept contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are "patently insufficient." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where reading the allegations reveals the existence of an affirmative defense, the complaining party must

plead around the defense by alleging specific facts that would avoid the apparent defense. (*Blank, supra*, 39 Cal.3d at p. 318.)

SOC

During the relevant period, Employee was employed by District as a Physical Education (PE) teacher at Bravo Medical Magnet High School. The SOC alleges Employee engaged in immoral conduct in violation of Education Code sections 44932, subdivision (a)(1), and 44939; committed unprofessional conduct in violation of Education Code section 44932, subdivision (a)(2); persistently violated or refused to obey school laws or regulations in violation of Education Code section 44932, subdivision (a)(8); and his unfitness for service is evident under Education Code section 44932, subdivision (a)(6).

In support of its charge of immoral conduct, District alleges the following:

1. During the 2022-2023 school year, [Employee] unnecessarily and inappropriately exchanged cell phone numbers with student Victoria R.
2. Beginning on or about March 2, 2023 and ending on or about March 14, 2023, [Employee] unnecessarily and inappropriately communicated with student Victoria R. via cell phone during school hours, including but not limited to the following:
 - a. On or about March 2, 2023 around 9:23 AM, [Employee] unnecessarily and inappropriately texted student Victoria R. to meet him in the weight room.

- b. On or about March 6, 2023 around 8:41 AM, [Employee] unnecessarily and inappropriately texted student Victoria R. whether she was at the school.
 - c. On or about March 7, 2023 around 11:20 AM, [Employee] unnecessarily and inappropriately texted student Victoria R. requesting to borrow her phone to order food and implied that she should go to the restroom and leave her class during instructional time so that he may borrow her phone.
 - d. On or about March 10, 2023 around 10:02 AM, [Employee] unnecessarily and inappropriately texted student Victoria R. requesting her to order food from Urth Cafe with her Apple Pay, told her she could get one item and told her he would pay her back through Zelle.
 - e. On or about March 14, 2023 around 12:35 PM, [Employee] unnecessarily and inappropriately texted student Victoria R., another student's address in Riverside County and asked how far she lived from the address.
3. [Employee's] conduct alleged in Charges 1 through 2, inclusive, constituted grooming or was indicative of a person attempting or intending to groom a minor.

(SOC, pp. 2-3.)

District contends the foregoing conduct warrants Employee's immediate dismissal without pay. Employee contends District failed to plead sufficient facts to establish immoral conduct. According to Employee, District's claims of immoral conduct are conclusory because District failed to specify the context of the alleged texts and did not directly quote any of the alleged texts. Employee further asserts a PE teacher texting a student to come to the weight room, asking whether she was in school, and whether she lives near another student could have any number of innocuous purposes.

Immoral Conduct

"[T]he term 'immoral conduct' in [Education Code] section 44932, subdivision (a)(1) 'stretch[es] over so wide a range' of conduct that it 'embrace[s] an unlimited area of conduct.'" (*Crawford v. Commission on Professional Competence* (2020) 53 Cal.App.5th 327, 337, quoting *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224-225.) Courts have defined immoral conduct in school settings as conduct "'hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wil[li]ful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.'" (*Board of Ed. of San Francisco Unified School Dist. v. Weiland (Weiland)* (1960) 179 Cal.App.2d 808, 811, quoting *Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740.)

Immoral conduct also "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San*

Diego Unified School Dist. v. Commission on Professional Competence (2011) 194 Cal.App.4th 1454, 1466.) "Thus, the term must be 'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public . . . more specifically in this case, conduct which is hostile to the welfare of the school community.'" (*Crawford, supra*, 53 Cal.App.5th at p. 337, quoting *Morrison, supra*, 1 Cal.3d at p. 224.)

Disposition

In this case, District alleges Employee's conduct constitutes grooming. However, Employee's texts to Victoria R., asking her to meet in the weight room, inquiring whether she was at school and whether she lived near another student, and requesting her to order food for him and to borrow her phone to order food, are not sexual in nature. Without any context, these texts also do not demonstrate any attempts by the Employee to target, isolate, or control Victoria R., as District contends in its Opposition. (Opposition, p. 4.) For example, there is no allegation that Employee sent these texts only to Victoria R.; there is no allegation that Employee asked to meet Victoria R. alone in the weight room; there is no allegation that Employee's offer of paying for one item of food from Urth Café was not to compensate Victoria R. for ordering food on Employee's behalf.

There is also no allegation in the SOC, as District contends in its Opposition, that Employee "encouraged the student to lie and break school rules to meet with him." (Opposition, p. 4.) District alleges in the SOC: "[Employee] implied that [Victoria R.] should go to the restroom and leave her class during instructional time so that he may borrow her phone." (SOC, p. 2.) However, without a direct quote from the original text, it is unclear whether Employee in fact instructed Victoria R. to lie about going to the bathroom so that she could leave her class, or District simply interpreted his words

as such. (See *Blank, supra*, 39 Cal.3d at p. 318 [when testing the sufficiency of allegations in a pleading, deductions should be disregarded].)

In sum, based on the allegations in the SOC, Employee may have engaged in personal and inappropriate communications with Victoria R., but his actions do not constitute grooming behavior for the purpose of sexualizing his relationship with her. Employee's alleged actions may reflect poor judgment, unfitness for service, or unprofessional conduct, but, without additional facts, those acts are not "indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Weiland, supra*, 179 Cal.App.2d 808, 811.)

All arguments made by counsel in their briefs and at oral argument have been considered. The facts pleaded in the SOC, if true, are not sufficient to support a claim against Employee for immoral conduct and therefore cannot form a basis for immediate suspension without pay under Education Code section 44939, subdivision (c)(1). Accordingly, the Motion for Immediate Reversal of Suspension is granted.

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ORDER

The motion by Efren Cadena for immediate reversal of his suspension without pay is granted.

DATE: 01/13/2025

A handwritten signature in cursive script that reads "Ji-Lan Zang".

JI-LAN ZANG

Administrative Law Judge

Office of Administrative Hearings